

HOUSE No. 3473

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Energy Facilities Siting Board.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 3473

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 3473) of Michael S. Day relative to the Energy Facilities Siting Board. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3688 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Energy Facilities Siting Board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 69H of Chapter 164 of the Massachusetts General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the first paragraph and inserting in place
3 thereof the following paragraph:-

4 “There is hereby established an energy facilities siting board within the department, but
5 not under the supervision or control of the department. Said board shall implement the provisions
6 contained in sections 69H to 69Q, inclusive, so as to provide a reliable energy supply for the
7 commonwealth with a minimum impact on the environment and public health, and with a
8 minimum impact on the overall wellbeing of residents abutting the project at the lowest possible
9 cost after these impacts are considered. To accomplish this, the board shall review the
10 environmental and public health impacts, the need for and the cost of transmission lines, natural

11 gas pipelines, facilities for the manufacture and storage of gas, and oil facilities; provided,
12 however, that the board shall review only the environmental impacts of generating facilities,
13 consistent with the commonwealth's policy of allowing market forces to determine the need for
14 and cost of such facilities; provided, however that the Board shall solicit and consider testimony
15 from the department of fish and game whenever reasonable environmental stewardship concerns
16 are raised; provided, however, that the Board shall solicit and consider testimony from the
17 department of public health whenever reasonable public health concerns are raised. Such reviews
18 shall be conducted consistent with section 69J1/4 for generating facilities and with section 69J
19 for all other facilities.